

Amendment No. 1 to SB0897

White
Signature of Sponsor

AMEND Senate Bill No. 897

House Bill No. 932*

by deleting subdivision (b)(4) in Section 1 and substituting instead the following:

- (4) Permits a student to use a wireless communication device during instructional time if:
 - (A) The student's use of the wireless communication device is included in the student's:
 - (i) Individualized education program under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.);
 - (ii) Active 504 plan developed under Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 794); or
 - (iii) Individual learning plan; or
 - (B) The wireless communication device is being used by a student with a disability for the operation of assistive technology to increase, maintain, or improve the student's functional capabilities; and